

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN ARGENTINA

Complete Community Opposition How-To

A practical manual for vecinos, campesinos, Indigenous communities, and citizens' assemblies facing a mine, a dam, a pulp mill, a soy or fracking frontier, or a development on land or water they depend on. Argentina is a federal country: the provinces own their natural resources and can ban or permit projects, so much of the fight is provincial and municipal — check locally.

INTRODUCTION & FRAMEWORK

Hold onto one fact before anything else, because it's true and it's Argentine: **an ordinary Patagonian town, told by both major national parties that the mine was coming, held a vote, said no by four to one — and the mine never got built.**

That's the record of **Esquel**. In 2002 the Canadian company Meridian Gold arrived in this town of thirty thousand in Chubut to dig an open-pit gold-and-silver mine, using cyanide, seven kilometres upstream. The neighbours organised — not through a party or an NGO, but as an **Asamblea de Vecinos Autoconvocados**, a self-convened citizens' assembly — gathered the science on what cyanide leaching would do to their water and their tourism-and-trout economy, and put it to the town. Under the slogan "**No a la Mina,**" on **23 March 2003, 81 per cent voted no**, on a 75 per cent turnout. The company's shares fell the next day. And the win stuck, because the community turned the vote into law: Chubut province passed **Law 5001**, banning open-pit metal mining and cyanide in the province; the town council declared Esquel a "non-toxic, environmentally sustainable municipality"; and when the company challenged the ban, **Argentina's Supreme Court upheld it in 2007**. A town that was "alone, but organised" beat a multinational — and lit a fuse.

Because Esquel didn't stay in Esquel. It sparked a movement: more than a hundred self-convened assemblies formed across the country, and to date around **nine provinces have enacted laws limiting or banning mega-mining** — legislation the courts have repeatedly upheld. That's the Argentine pattern, and it's distinctive: a determined, horizontal, assembly-based movement, a **popular consultation** that turns community will into political fact, and — the key that locks the win in — the power of a **province** to ban a whole class of project outright.

Carry the caution too. When Esquel's assembly exposed a leaked recording of the company plotting to reverse the vote, the firm **sued six neighbours** — a warning that corporations here will use the courts to intimidate. Argentina is a robust democracy where protest, petition, and litigation are lawful, but be ready for SLAPP suits and the criminalisation of protesters, and protect your people.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A large Argentine project needs its **environmental impact assessment (EIA)** and its provincial permits; it can be **banned outright by the province**; it can be frozen by an **amparo ambiental**; it can be rejected by a **popular consultation**; and it needs public acceptance. Every one of those is a link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **Because provinces own their resources, a provincial ban is Argentina's strongest and most durable lever** — Chubut's Law 5001, upheld by the Supreme Court, is the model.
- **A popular consultation turns community opposition into political fact** — Esquel's 81 per cent no became impossible to ignore.
- **The amparo ambiental can freeze a project fast**, and the courts can halt works until the EIA and its public hearing are properly done.
- **If the province itself backs the project, it's harder** — then you fight to change the province's politics, on the movement, the courts, and public opinion.

Read the whole guide once before you move. Two habits run through it: **use the tools the law and the federal system give you** — the EIA and its public hearing, the amparo, the popular consultation, the provincial legislature — and **run every front at once**: the documents, the assembly, the courts, the vote, the press. And protect your people from SLAPP and criminalisation.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

Argentina is federal, and this is the key to everything: **the provinces own their natural resources** and regulate mining, water, and the environment within national "minimum-standard" laws. So the **provincial government and legislature** usually grant the permits — and can **ban** a class of project outright, as Chubut did. The **municipality** handles local matters and can hold consultations and pass ordinances. The **national government** sets the framework (the General Environment Law — the *Ley General del Ambiente*, No. 25.675) and backs strategic projects. Know which level holds your lever, and aim there — the province is often the decisive one.

How a Project Moves — and Where You Jump In

The EIA and the public hearing. The project needs an **environmental impact assessment**, and the General Environment Law requires public participation, usually an **audiencia pública** (public hearing). *Your opening*: file substantive objections and pack the hearing; a project that skipped or botched these can be stopped.

The provincial permit — or ban. The province authorises the project. *Your opening — the strongest*: press the provincial legislature to **ban** the class of project, and challenge any permit that ignored the EIA or the precautionary principle.

Construction. *Your opening*: works without a valid EIA or in breach of conditions can be frozen by an amparo.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — company records set the exposure, and a foreign miner's share price is sensitive to conflict. **What it still needs** — the EIA not approved or under challenge, the provincial permit not granted, financing not closed: whatever's missing is the soft spot. **Who's**

paying — banks and international lenders with their own environmental standards.

Who's Supposed to Be Watching

Each is an ally or an arena. The **provincial environmental authority** runs the EIA and can be pressed. The **provincial legislature** can ban the project — your most powerful ally if you can move it. The **courts** hear the **amparo ambiental** and can freeze a project fast, up to the **Supreme Court**, which has upheld provincial mining bans. The **Defensor del Pueblo** (ombudsman) has standing to litigate for the environment. And Argentina's **vast assembly movement, its environmental lawyers, and a free press** are the forces that reach furthest — the network Esquel started.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether you can move the province, whether a consultation is reachable, whether the EIA was skipped or flawed, and how set the province is on the project.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Objections + packing the audiencia pública	15–35%	during EIA	low	On record; conditions or a redo
Amparo ambiental (with injunction)	30–55%	weeks–months	low–mod	Project frozen; EIA enforced
Popular consultation (plebiscite)	30–55%	months	low	Opposition becomes political fact (Esquel)
Provincial ban (legislature)	35–60%	months–yr	low	The class of project prohibited (Law 5001)
Movement + national press	30–55%	months–yr	low	Political cost; project reconsidered
Everything together (province movable, public watching)	45–70%	1–4 yr	low–mod	Banned, frozen, rejected, delayed
Everything together (province-backed)	20–45%	1–4 yr	low–mod	Delayed, conditioned, exposed

The levers that move the needle most are the **provincial ban** and the **popular consultation**, backed by the **amparo** and the movement. Esquel shows the ceiling (a multinational's mine banned and the ban upheld by the Supreme Court). The honest floor is a province set on the project, where the fight is to change the province's politics — and a win may be delay, conditions, and exposure first.

On cost: the assembly, the objections, and the consultation campaign are cheap; the amparo is a fast, accessible constitutional tool with broad standing; and the Defensor del Pueblo and environmental lawyers can carry cases. The movement's horizontal, assembly-based model is Argentina's proven engine.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this EIA, this permit, this provincial law — is strong. Answer five questions in writing.

- 1. What is it, and who's behind it?** Name the project, the company, its owners, its financiers.
- 2. Where is it, and what does it touch?** Get the boundaries and lay them over water and glaciers, Indigenous land, farmland, protected areas, tourism economies. **Water — and, in the Andes, glaciers protected by the Glacier Law — is often the sharpest issue**, as cyanide and water were at Esquel.
- 3. What stage is it at, and what's the next deadline?** Is the EIA in public participation — is the audiencia pública scheduled? Has the provincial permit been granted (opening the amparo window)? Is the provincial legislature in session? These openings are time-bound.
- 4. What does it still need that it lacks?** An approved EIA, a provincial permit, financing — and, crucially, it needs the province *not* to ban it. The missing piece is the soft spot.
- 5. Who else is affected, and who already opposes it?** The vecinos, an existing or new self-convened assembly, Indigenous communities, the tourism and farming sectors, the national assembly network. Esquel's neighbours were "alone, but organised" — and then far from alone.

What this looks like in real life. A community learns an open-pit mine is planned upstream, threatening its water. The five questions yield: a foreign miner behind it; a project that threatens the town's water and tourism (the sharp issue); an EIA and audiencia pública pending; a project still needing its permit and needing the province not to ban it; and a coalition of vecinos ready to form an assembly. That's the Esquel pattern — the assembly, the science on the water, the consultation, and the push for a provincial ban.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — and Esquel's assembly won by mastering the science of what the mine would do to its water. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the EIA, the provincial permits and conditions, the water and glacier studies, the audiencia pública record. Argentina's environmental-information rights (from the General Environment Law and the Escazú Agreement) give you access, so demand what isn't public. Then read the EIA hard for flaws — an understated impact on water, an ignored alternative, cyanide or tailings risks brushed over, a public hearing that was a formality.

Layer two: the ground truth. Dated, located photographs and video of the site, the river, the glacier, the land — baseline images and water data before any operation most of all — and the testimony of affected neighbours.

Layer three: the map of what's at risk. Lay the project over the water sources, glaciers, Indigenous land, and protected areas it threatens, so the harm is undeniable. Walking into the hearing, the court, or the legislature with the EIA, the water science, and that map is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The EIA, the provincial permits and conditions, the water and glacier studies, the audiencia pública record** — from the provincial environmental authority; force out the rest under the environmental-information rules (8A).
- **Municipal ordinances and consultation records** — from the municipality.

- **Ownership and financing** — company records and lender documents.
- **The risk map** — water sources, glaciers, Indigenous land, and protected areas, laid over the site.
- **Dated site evidence and baseline water data** — photographs and readings marked with date and place, and neighbours' testimony.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Argentina's self-convened assemblies are among the most effective community-organising models anywhere. Build your coalition in four moves.

Start with a tight core, and form an assembly. The Argentine vehicle is the **Asamblea de Vecinos Autoconvocados** — a horizontal, open, self-organised citizens' assembly, owned by no party. Build it around the neighbours most affected, the people who know the water and land, and a few tireless organisers. Its independence is its strength: at Esquel, both national parties backed the mine, and the assembly's power was that it belonged to no one but the town.

Widen the circle. Pull in the surrounding towns, the tourism and farming sectors, Indigenous communities, and the wider province. Hold open meetings where people see the evidence — the science of what the project does to the water. Connect to the **national assembly network** that Esquel started; it's a real, experienced movement.

Aim at the province. The decisive target is often the **provincial legislature**: organise to win a provincial ban, the most durable victory of all.

Bring in the allies and lawyers — early, and build to last. Reach the environmental lawyers who know the amparo, the scientists who can dismantle the EIA, and the assembly network. Build clear roles, a secure archive, and a plan for a long fight — and for SLAPP suits and criminalisation, which are real; protect the vulnerable and line up legal defence.

STEP 4: LEGAL CHALLENGES, THE VOTE & THE PROVINCE

Law and democracy are Argentina's sharpest levers, because the amparo is fast and open, and the province can ban a project outright.

The Amparo Ambiental

The **amparo ambiental** is Argentina's great environmental remedy: a fast constitutional suit (Article 43 of the Constitution) with **broad standing** — affected people, environmental associations, and the ombudsman can all bring it — to stop an act that harms the environment, with an injunction to **freeze the project** while the case runs. Use it against a permit granted without a proper EIA or in breach of the **precautionary principle**, or to force the audiencia pública and the assessment the law requires. The General Environment Law's action for **collective environmental damage** backs it up.

The Popular Consultation

The Esquel masterstroke was the **popular consultation** — a municipal or provincial plebiscite. It isn't always legally binding, but a lopsided vote turns community opposition into a political fact no government can ignore, and it becomes the mandate for the next step: the ban. Organise the vote, win it big, and use it.

The Province's Power to Ban

Here is Argentina's unique strength: because **provinces own their natural resources**, a provincial legislature can **ban a whole class of project** — open-pit mining, cyanide use — outright and durably. Chubut's **Law 5001**, born of Esquel, did exactly that, and the **Supreme Court upheld it**. Around nine provinces now have such laws. The most powerful thing a movement can do here is convert a popular consultation into a provincial ban.

The Honest Limits

Straight talk: the amparo and the courts are real and fast, and provincial bans are durable — but a province set on a project is a hard opponent, national governments push strategic mining and energy, and companies use SLAPP suits and criminalisation against activists. So use the strong tools — the amparo, the consultation, the provincial ban — pair them with the movement and the press, protect your people, and count a frozen project, a rejected consultation, a provincial ban, delay, and exposure as wins alongside a clean stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A document becomes an amparo. Not "the mine is bad" but *"the permit was granted without a proper EIA and against the precautionary principle — we seek an amparo to freeze it."*

Water becomes the case. *"This mine would put cyanide upstream of the water thirty thousand people and our tourism economy depend on."*

A vote becomes a mandate. *"81 per cent said no — the province must now ban this."*

The province becomes the shield. *"Under our provincial law, this class of mining is prohibited — as the Supreme Court has confirmed provinces may do."*

Match it to the venue: the EIA flaws to the hearing and the amparo; the water science to the court and the public; the vote to the legislature; the ban to the province.

STEP 5: MEDIA STRATEGY

In Argentina, publicity turns a town's "no" into a provincial law and a national movement — Esquel made national headlines and became the seed of a country-wide uprising. A free press, a proud assembly tradition, and a public that remembers Esquel make the media front central.

Lead with people and place, not procedure. Not "the EIA was deficient" but "the clean water, the mountains, the tourism and trout our town has always lived from — for a cyanide mine we never agreed to." Use your strongest material: dated photographs and water data, the map of the project over the water, a consultation result, and named neighbours.

Work several audiences at once. Local and provincial press build pressure on the legislature; the national assembly network amplifies; national and international media reach the company's investors and its share price. Make it easy: captioned photos, accurate summaries, a map, strong interviews.

Two hard rules. Accuracy above all — one exaggeration can hand a SLAPP suit its ammunition. And protect people — get legal advice, especially given the record of companies suing and criminalising activists.

EMAILS & LETTERS

Make them your own; keep them factual and calm; keep copies; and protect anyone at risk.

8A — Environmental-information request (to the provincial authority).

Subject: Pedido de información ambiental — [proyecto].

"Under the environmental-information rules, we, residents of [place], request the EIA, the permits and conditions, the water and glacier studies, and the audiencia pública record for [project] at [location]. [Contact.]"

8B — Objection in the EIA / audiencia pública.

Subject: Observaciones — audiencia pública de [proyecto].

"We, residents of [place], object to [project]: [the EIA understates the impact on our water / ignores the glacier / breaches the precautionary principle]. We ask that these be addressed and the project refused. [Attach evidence.]"

8C — Filing an amparo ambiental (to a lawyer).

Subject: Amparo ambiental y medida cautelar — [proyecto].

"We instruct you to file an amparo ambiental against [the permit / the project], and to seek an injunction freezing it, on the grounds that [the EIA was inadequate / the precautionary principle was breached / the audiencia pública was skipped]. Please act promptly. [Attach the permit, the EIA and our evidence.]"

8D — Calling for a popular consultation (to the municipality/province).

Subject: Solicitud de consulta popular — [proyecto].

"We ask that [project] be put to a popular consultation, so the community can decide directly whether it accepts a project that [threatens our water and economy]. [Contact.]"

8E — To the provincial legislature (for a ban).

Subject: Proyecto de ley — prohibición de [tipo de proyecto].

"Following [our community's overwhelming rejection of / the risks posed by] [project], we ask the legislature to enact a law prohibiting [open-pit metal mining / cyanide use] in the province, as Chubut did with Law 5001, upheld by the Supreme Court. [Contact.]"

8F — To a financier or the company's investors.

Subject: Environmental, legal and reputational risk — [project].

"We understand your institution may be [financing / invested in] [project] at [location], which [threatens our water / faces a provincial ban and active legal challenge]. We ask you to weigh this against your own environmental standards. [Contact and evidence summary.]"

8G — Letter to the press.

Subject: [Community] moves to protect [water / mountains / land] from [project].

"For generations the people of [place] have lived from [the clean water / the mountains] at [location]. Now [project] threatens it, and we never agreed to it. We can provide photographs, water data, a map and interviews. [Contact.]"

8H — Rallying the community.

Subject: We can stop this — here's how.

"[Project] threatens [our water / land / mountains]. Esquel — alone, but organised — voted 81 per cent no and got its province to ban the mine, and the Supreme Court upheld it. With an assembly, an amparo, a consultation, and the province behind us, we have a real chance. Please join us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Nail down the project and its footprint, and master what it does to your water.** Water — and glaciers — is often the sharpest issue.
2. **Form a self-convened assembly and connect to the national network.** It's Argentina's proven engine, and it belongs to no party.
3. **Get the EIA (8A), object, and pack the audiencia pública (8B).**
4. **Photograph everything and take baseline water readings, with dates and places.**
5. **Be ready to file an amparo ambiental with an injunction (8C) to freeze the project fast.**
6. **Push for a popular consultation, and aim it at a provincial ban (8D/8E).** That's the Esquel combination — and the most durable win.

Even lean, those six use your rights, build the record, and put a freeze, a vote, and a possible ban within reach.

WHEN THE SYSTEM IS TILTED

Argentina's tools are real, but the field is often tilted, and you must plan for it.

When the province backs the project. If the province is the developer's ally, the ban route is blocked — so fight to change the province's politics: use the amparo and the consultation, keep the movement alive, and make the province pay a political cost.

When the national government pushes strategic mining or energy. Federal pressure is real. Don't fold: the province's own power to regulate its resources is your counterweight, and the assembly network is national too.

When companies sue or criminalise activists. Esquel's six neighbours were sued; protesters are criminalised. Take it seriously: line up legal defence, protect the vulnerable, keep your public case scrupulously accurate, and turn the intimidation itself into a story.

What still works, and it's a lot. The amparo freezes projects fast; the popular consultation turns opposition into political fact; the province can ban a class of project outright and durably; and the assembly movement is one of the strongest on earth.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Argentina has documented problems with the capture of permits by mining and business interests, so this matters.

How to spot it. Permits granted over the technical evidence; an EIA written for the proponent; an audiencia pública staged to exclude the affected; revolving doors between companies and provincial governments; benefits to the connected while the community carries the harm; opaque public spending.

Who's supposed to guard against it. The **Auditoría General** examines public money; the **prosecutors and anti-corruption office** investigate graft; the **courts** can void a tainted permit; the **Defensor del Pueblo** takes complaints and can litigate. And Argentina's **investigative press** has repeatedly exposed captured projects.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the proper bodies and trusted journalists rather than making accusations you can't back — especially given the SLAPP risk. Pair the exposure with the legal challenge and the public campaign.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; the water science aims it; the assembly builds the muscle; the amparo, the consultation, and the legislature press the case; the media raises the cost. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): nail down the project, its footprint, and the water risk; form a self-convened assembly and connect to the network; get the EIA and object; pack the audiencia pública; take baseline water data; get a lawyer ready for an amparo; protect your people from SLAPP.

In the thick of it (months–years): file an amparo ambiental with an injunction; organise and win a popular consultation; push the provincial legislature for a ban; deepen the coalition and the science; open the media front.

The long haul (years): carry the amparo through the courts and defend any provincial ban (the Supreme Court has upheld them); keep the assembly and the movement alive; hold the line for a frozen project, a rejected consultation, a provincial ban, delay, or an outright stop.

FINAL ASSESSMENT

Stopping a destructive project in Argentina can be done — a town that both national parties told to accept the mine voted 81 per cent no, got its province to ban open-pit mining, and saw the Supreme Court uphold it. Hold both truths. Argentina's tools are real and, in the federal system, unusually strong: an amparo ambiental that freezes projects fast with broad standing; a popular consultation that turns opposition into political fact; and a province's power to ban a whole class of project, durably. And the constraints are real: province-backed projects, national pressure for mining and energy, and companies that sue and criminalise activists.

Here's the discipline that wins. Master what the project does to your water, and pry loose the EIA. Form a self-convened assembly and connect to the national network. File an amparo ambiental with an injunction to freeze it, and object in the audiencia pública. Organise a popular consultation, win it big, and turn it into a provincial ban — the most durable victory of all. Carry the story to the province and the nation, and protect your people from SLAPP. Count a frozen project, a rejected consultation, a provincial ban, delay, and exposure as wins alongside a clean stop. That's what Esquel did — an assembly, a vote, and a province that said no. So can you.